



CHAPTER iv.

An Act to empower the Weaver Navigation Trustees to acquire lands to extend the jurisdiction of the Trustees and for other purposes.

[10th December 1945.]

WHEREAS by the Weaver Navigation Act 1721 a body of trustees was constituted for making preserving and improving the navigation of the river Weaver from Frodsham Bridge to Winsford Bridge in the county of Chester and by the Weaver Navigation Act 1807 the said trustees were empowered to make a navigable cut or canal from the said river Weaver in the township of Sutton by Frodsham to the river Mersey at or near Weston Point: 7 Geo. 1. c. 10.

And whereas by the River Weaver Navigation Act 1895 the control and management of the said navigation was transferred from the said trustees to a body of trustees (in this Act referred to as "the Trustees") to be constituted and elected as provided by that Act: 47 Geo. 3. c. 82.

And whereas it is expedient that the jurisdiction of the Trustees should be extended from Winsford Bridge to Shrew Bridge in the urban district of Nantwich in the county of Chester as by this Act provided: 58 & 59 Vict. c. cxi.

And whereas for many years past the quantity of traffic over that section of the navigation from Frodsham Lock to the point of junction of the river Weaver with the Frodsham Cut has been negligible and it is expedient that the Trustees should be released from their obligations to maintain such section as a navigation in the circumstances and to the extent and in the manner in this Act provided:

And whereas it is expedient that further powers including the acquisition of land otherwise than by agreement for the purposes of improving the navigation or otherwise for the

purposes of their undertaking should be conferred upon the Trustees as provided by this Act:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas plans showing the lands to be acquired under this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been duly deposited with the clerk of the county council of the county palatine of Chester and are in this Act referred to as the deposited plans and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Weaver Navigation Act 1945.

(2) The Weaver Navigation Acts 1721 to 1935 and this Act may be cited together as the Weaver Navigation Acts 1721 to 1945.

Incorporation
of Lands
Clauses Acts.

2.—(1) The Lands Clauses Acts are hereby incorporated with this Act:

Provided that any question of disputed compensation under this Act (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Trustees and the person claiming the compensation or in default of such agreement appointed by the President of the Chartered Surveyors' Institution on the application of either party.

8 & 9 Vict.
c. 18.

(2) Sections 127 to 131 of the Lands Clauses Consolidation Act 1845 shall not apply to any land which is now vested in the Trustees or is hereafter acquired by them.

Interpretation.

3. In this Act unless the context otherwise requires—

“ the Trustees ” means the Weaver Navigation Trustees;

“ the navigation ” means the river Weaver and the Weston Canal and all docks basins works and navigable and other cuts and branches belonging thereto;

“ land ” includes any interest in land and any easement or right in to or over land;

"the Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919. 9 & 10 Geo. 5. c. 57.

LANDS.

4. Subject to the provisions of this Act the Trustees may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the improvement of the navigation or otherwise for the purposes of the undertaking of the Trustees. Power to acquire lands.

5. The powers of the Trustees for the compulsory purchase of lands in pursuance of section 4 (Power to acquire lands) of this Act shall cease after the expiration of three years from the first day of October one thousand nine hundred and forty-five or two years from the end of the period for which the Emergency Powers (Defence) Act 1939 is in force whichever shall be the later. Period for compulsory purchase of lands. 2 & 3 Geo. 6. c. 62.

6. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Trustees after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and if the lands are situate in a county borough such certificate or copy thereof shall be deposited with the town clerk and if the lands are situate in an administrative county such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof shall be deposited with the clerk of the council of the county district in which the lands are situate and if the lands are situate in a rural parish having a parish council also with the clerk of that council and such certificate or a copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Trustees to take the lands and execute the works in accordance with the certificate. Correction of errors in deposited plans and book of reference.

Acquisition
of easements
compulsorily.

7.—(1) The Trustees may in lieu of acquiring any lands for the improvement of the navigation or otherwise for the purposes of the undertaking of the Trustees acquire such easements and rights in such lands as they may require for such purposes and may give notice to treat in respect of such easements and rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts except that no such easement or right shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

(2) As regards any lands in respect of which the Trustees have acquired easements or rights only under the provisions of this section the Trustees shall not be required or entitled to fence off or sever such lands from the adjoining lands but unless otherwise agreed the owners or occupiers for the time being shall subject to such easements and rights have the same rights of using and cultivating such lands at all times as if this Act had not been passed.

Extinction of
private rights
of way.

8. All private rights of way over any lands which the Trustees are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Trustees be extinguished:

Provided that the Trustees shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to enter
property for
survey and
valuation.

9. The Trustees and their surveyors officers and workmen and any person duly authorised in writing under the hand of the engineer of the Trustees may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Compensation
in case of
recently
acquired
interest.

10. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the arbitrator to whom any question of disputed compensation is referred shall not award any sum

of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November one thousand nine hundred and forty-four if in the opinion of such arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Trustees any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements.

12.—(1) The Trustees may by means of the procedure referred to in subsection (2) of this section purchase compulsorily for the purposes of carrying out their duties with respect to the navigation any lands abutting on or being in the vicinity of the navigation.

Power to acquire additional lands compulsorily

(2) The provisions of section 161 of the Local Government Act 1933 shall have effect with respect to the compulsory purchase of land by the Trustees under this section subject to the restrictions contained in section 179 of that Act as if the Trustees were a local authority and this Act were a public general Act passed after the commencement of the said Act of 1933 and the Minister of War Transport were the Minister.

23 & 24 Geo. 5. c. 51.

13. In addition to any other lands acquired or held by the Trustees or which they are now authorised to acquire or hold the Trustees may by agreement purchase or take leases of and hold further lands for the purposes of their undertaking or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or affecting any such lands:

Acquisition of lands by agreement.

Provided that the Trustees shall not create or permit any nuisance on any such lands nor erect any buildings thereon except such as are required for or are connected with or incident to the purposes of their undertaking.

14.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Trustees may retain and hold and use for such time as they think fit or may sell lease exchange

Retention and disposal of lands.

or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money or equality of exchange.

(2) Nothing in this section shall release the Trustees or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions payable in respect of or affecting the lands other than the restrictions imposed by sections 127 to 131 of the Lands Clauses Consolidation Act 1845 but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

MISCELLANEOUS.

**Extension of
jurisdiction
of Trustees.**

15.—(1) Subject to the provisions of this section the jurisdiction of the Trustees with respect to the river Weaver is hereby extended from Winsford Bridge to Shrew Bridge in the urban district of Nantwich in the county palatine of Chester and the Trustees shall have and may exercise within such extended jurisdiction all and the like powers rights and authorities with respect to the river Weaver and shall be subject to all and the like liabilities and obligations in respect thereof as they have may exercise and are subject to under the Weaver Navigation Acts 1721 to 1945 within their existing jurisdiction.

(2) The Trustees shall not within the extended jurisdiction authorised by subsection (1) of this section except with the further authority of Parliament acquire any lands otherwise than by agreement or carry out works for the widening deepening or other improvement of the river Weaver.

(3) The limitation contained in subsection (2) of this section shall not apply to the carrying out of any works to which the previous consent in writing of the county council of the administrative county of the county palatine of Chester the Cheshire Rivers Catchment Board the London Midland and Scottish Railway Company the Great Western Railway Company and the Manchester Ship Canal Company has been given:

Provided that in the case of the said railway companies and canal company such consent shall not be unreasonably withheld. Any question as to whether such consent is unreasonably withheld may be referred by either party to the Railway and Canal Commission and shall thereupon be deemed to be a difference referred to the said commission for their decision pursuant to section 8 of the Regulation of Railways Act 1873^{36 & 37 Vict. c. 48.} and shall be determined by the said commission accordingly.

(4) The Trustees shall not carry out any works in respect of which consent has been given under subsection (3) of this section so as to affect prejudicially the rights or interests of the owners of or other persons having rights or interests in the land adjoining the site of such works.

16.—(1) In this section “the Frodsham Cut” means the Closing of section of the navigation extending in an easterly direction from the western end of the Frodsham Lock for a distance of four furlongs or thereabouts to the main channel of the navigation.^{portion of navigation.}

(2) As from the coming into operation of this subsection—

- (a) all rights of navigation along and over and all rights of user by boats barges lighters or other vessels of the Frodsham Cut shall cease and be extinguished and the Frodsham Cut shall not be used for navigation except as may be necessary or convenient in connection with any works of maintenance of the navigation;
- (b) the Trustees shall be released from all obligations imposed upon them to keep and maintain the Frodsham Cut in good working condition for navigation and to preserve the supplies of water to the Frodsham Cut or supply the Frodsham Cut with water for the purpose of navigation but they shall retain all their existing powers to supply the Frodsham Cut with water;
- (c) the Trustees shall remain and be under all existing liabilities with respect to the prevention of leakage from the closed section and to all existing obligations to repair or maintain any drain discharging into the closed section.

(3) Subsection (2) of this section shall come into operation on such date as the Trustees may by resolution determine:

Provided that such resolution shall not be passed nor be effective—

- (a) unless the average annual tonnage of merchandise passing in the ordinary course of trading operations through the Frodsham Cut during the three years

immediately preceding the first day of January one thousand nine hundred and fifty-six shall be less than five hundred tons; and

- (b) until the Trustees shall have given notice in writing of their intention to close the Frodsham Cut to the county council of the administrative county of the county palatine of Chester the Runcorn Rural District Council P. W. Davies Limited or other the owner or owners for the time being of the Sutton Mills in the parish of Sutton and the Chester and District Farmers Trading Society Limited or other the owner or owners for the time being of the Lostock Gralam Mill in the urban district of Northwich and shall have considered any representations made by either of the said councils or companies or their successors thereon.

(4) During the period from the date of the passing of this Act to the first day of January one thousand nine hundred and fifty-six the Trustees shall not make any application for a warrant authorising the abandonment of the Frodsham Cut under section 45 of the Railway and Canal Traffic Act 1888.

51 & 52 Vict.
c. 25.

Stopping up of
footpath at
Pickering's
Bridge.

17.—(1) The Trustees may stop up and cause to be discontinued as a right of way the existing crossing at Pickering's Bridge in the parish of Dutton in the rural district of Runcorn and thereupon all rights of way across the said bridge shall be extinguished:

Provided that such stopping up and discontinuance shall not take place until—

- (a) an alternative public bridle path coloured red on the signed plan between the points A and C is open for public use; and
- (b) the said bridle path has been constructed of a width throughout of six feet including a crossing at Dutton Locks of the same width to the reasonable approval of the county surveyor of the county palatine of Chester or failing such approval of an engineer to be nominated by the President of the Institution of Civil Engineers.

(2) The portion of the towing path of the navigation coloured blue on the signed plan between the points marked D and E and the portion of the towing path of the navigation coloured red on the signed plan between the points marked F and G shall as from such stopping up and discontinuance as aforesaid be available for use as a public bridle path.

(3) The Trustees shall grant licences to any fit and proper persons applying for the same to establish maintain and use a ferry across the navigation between the points marked A

and D on the signed plan or between points not being more than one hundred yards to the east or west thereof with access to the point D on the signed plan subject to such precautions as may be necessary to prevent interference with navigation and subject to the Trustees being free from any liability financial or otherwise in respect of such ferry.

(4) In this section "the signed plan" means the plan signed in quadruplicate by Robert Grant-Ferris the chairman of the committee of the House of Commons to which the Bill for this Act was referred one copy whereof is deposited in the Parliament Office of the House of Lords one copy in the Committee and Private Bill office of the House of Commons one copy with the clerk of the peace for the county palatine of Chester and one copy at the principal office of the Trustees.

18.—(1) Whenever any vessel is sunk stranded or abandoned in any part of the navigation the Trustees may if they think fit cause the vessel to be raised or removed or (in the case of any vessel which it is not reasonably practicable to remove) to be blown up or otherwise destroyed in such manner as to clear the navigation.

Removal of
sunk stranded
or abandoned
vessels.

(2) The Trustees may recover from the owner of any such vessel either summarily as a civil debt or as a debt in any court of competent jurisdiction all expenses incurred by the Trustees under this section in connection with that vessel or in raising removing or saving any furniture tackle and apparel thereof or any cargo goods chattels and effects raised or saved therefrom or in marking lighting watching buoying or otherwise controlling such vessel:

Provided that the Trustees may if they think fit and shall if so required by the owner of the vessel cause such vessel and any furniture tackle apparel cargo goods chattels and effects or any part of the same respectively so raised removed or saved as aforesaid to be sold in such manner as they think fit and out of the proceeds of the sale may after paying any duties of customs or excise which shall be payable in respect of the said cargo goods chattels and effects reimburse themselves for any such expenses and shall hold the surplus (if any) of those proceeds in trust for the persons entitled thereto and in case such proceeds shall be insufficient to reimburse the Trustees such expenses the deficiency may be recovered by the Trustees in manner aforesaid.

(3) The Trustees shall (except in case of emergency) before raising removing blowing up or destroying any such vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Trustees notice in writing of his intention himself to raise and remove the vessel he shall be at liberty so to do in lieu of the Trustees:

Provided that if the owner gives any such notice as last aforesaid—

(a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by the Trustees for the purpose of preventing interference with navigation; and

(b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Trustees shall be at liberty to cause the vessel to be raised or removed or blown up or otherwise destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(4) The Trustees shall (except in case of emergency or when required by the owner to sell) before selling any such vessel under the provisions of this section give to the owner seven days' notice of their intention so to do.

(5) Any notice given by the Trustees pursuant to subsection (3) or subsection (4) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Trustees then by exhibiting such notice at the principal office of the Trustees for twenty-four hours in the case of a notice given under the said subsection (3) or for seven days in the case of a notice given under the said subsection (4).

(6) In this section the word "owner" in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time of the sinking stranding or abandonment thereof.

(7) The powers conferred on the Trustees by this section shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

Removal of
obstructions.

19.—(1) The Trustees may remove anything causing an obstruction in the navigation or to the proper use of any towing path thereof and also any floating timber which impedes the navigation thereof and the expense of removing any such thing or floating timber shall be repaid to the Trustees by the owner of the same and the Trustees may detain such thing or floating timber for securing reimbursement to themselves for such expenses and on non-payment thereof may recover the same from the owner or may sell

such thing or floating timber and out of the proceeds reimburse themselves for such expenses rendering the surplus (if any) to the owner on demand and in case such proceeds shall be insufficient to reimburse the Trustees such expenses the deficiency shall be paid to the Trustees by such owner on demand and in default of payment may be recovered from him.

(2) The Trustees may from time to time remove any broken dangerous or useless piles or mooring chains and remove any causeways stairs or other projections injurious to the navigation or to the free navigation thereof and any expenses incurred by the Trustees under this section shall be recoverable by them from the owner or occupier of the premises removed:

Provided that the Trustees shall not except in case of emergency remove any such piles or mooring chains or any such causeway stairs or other projection unless they have given not less than seven days' notice in writing by post to the owner and occupier of such piles mooring chains causeway stairs or other projection and (in the event of such owner or occupier within seven days after the service on him of such notice objecting in writing to such removal) except with the approval of the Minister of War Transport which approval the said Minister may give after holding such inquiry as he may think fit and after considering any representations made to him by the owner or occupier.

(3) Whenever the proper use of the navigation or any towing path thereof is obstructed by any tree bush shrub or projection the Trustees may apply to a court of summary jurisdiction for an order upon the owner or occupier of the land whereon such tree bush shrub or projection grows or is fixed to cut prune or lop such tree bush or shrub or to remove such projection so that the proper use of the navigation or any towing path thereof be not obstructed thereby and such court may make such order, and if such owner or occupier shall not comply therewith within a time to be specified therein the Trustees may cut prune or lop such tree bush or shrub or remove such projection and recover all expenses thereby incurred from such owner or occupier.

20.—(1) If on demand any bye-trader fail to pay the tolls and charges due to the Trustees in respect of any boat or merchandise it shall be lawful for the Trustees to detain and sell such boat or all or any part of such merchandise or if the same have been removed from the navigation or the premises of the Trustees to detain and sell any other boats or merchandise on the navigation or within such premises belonging to the bye-trader liable to pay such tolls or charges and out of the moneys arising from such sale to retain the tolls and charges payable as aforesaid and all expenses of

Recovery of
tolls and
charges from
bye-traders.

such detention and sale rendering the overplus (if any) of the moneys arising from such sale and such of the boats or merchandise as shall remain unsold to the bye-trader or person entitled thereto or it shall be lawful for the Trustees to recover any such tolls or charges by action in any court of competent jurisdiction.

(2) In this section "bye-trader" means any person (other than the Trustees) who conveys or desires to convey merchandise over the navigation.

For protection
of Liverpool
Corporation.

21. The following provisions for the protection of the lord mayor aldermen and citizens of the city of Liverpool (hereinafter referred to as "the corporation") shall unless otherwise agreed between the Trustees and the corporation apply and have effect (that is to say):—

(1) The acquisition of any lands by the Trustees in pursuance of section 4 (Power to acquire lands) and section 12 (Power to acquire additional lands compulsorily) of this Act or either of those sections shall not extinguish or in any way derogate from the rights of the corporation with respect to any lands in on or under which any main pipe or other work forming part of the Vyrnwy aqueduct constructed by the corporation in pursuance of the Liverpool Corporation Waterworks Act 1880 or any Act amending the same is situate:

(2) No main pipe or other work forming part of the said Vyrnwy aqueduct shall be deemed to be an obstruction within the meaning or for the purposes of section 19 (Removal of obstructions) of this Act.

43 & 44 Vict.
c. xliii.

For protection
of Warrington
Corporation.

22. The following provisions for the protection of the lord mayor aldermen and burgesses of the borough of Warrington (hereinafter referred to as "the corporation") shall unless otherwise agreed between the Trustees and the corporation apply and have effect (that is to say):—

(1) The acquisition of any lands by the Trustees in pursuance of section 12 (Power to acquire additional lands compulsorily) of this Act shall not extinguish or in any way derogate from the rights of the corporation with respect to any lands in on or under which any main pipe or other work constructed by the corporation in pursuance of the Warrington Corporation Water Act 1938 is situate:

(2) No main pipe or other work constructed by the corporation as aforesaid shall be deemed to be an obstruction within the meaning or for the purpose of section 19 (Removal of obstructions) of this Act

1 & 2 Geo. 6.
c. xcvi.

- (3) Nothing in this section shall be deemed to imply that the line of pipes constructed by the corporation under the navigation pursuant to the said Act of 1938 was constructed in accordance with plans sections and specifications approved by the Trustees under section 20 (For protection of Weaver Navigation Trustees) of that Act.

23. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the Trustees and the company and notwithstanding anything contained in this Act or shown on the deposited plans apply and have effect:—

For protection
of London
Midland and
Scottish
Railway
Company.

- (1) The Trustees shall not purchase or acquire any lands or property of the company nor any easement or right in over or under any such lands or property save and except that the Trustees may purchase and take and the company shall subject to the provisions of this section sell and grant accordingly an easement for the construction and use of a navigable channel in the lands coloured blue on the plan signed by Christopher Marriage Marsh on behalf of the Trustees and William Kelly Wallace on behalf of the company so far as such lands belong to the company and also an easement for the dedication for use as a public footpath of the bridge over the Trent and Mersey Canal of the company numbered 18 on the deposited plans:
- (2) In this section "works" means any works which may be carried out by the Trustees on any lands acquired or in respect of which any easement or right is acquired by virtue of this Act and also includes any reconstruction repairs or renewals of the same:
- (3) Before commencing the works the Trustees shall (except in cases of repair) submit to the principal engineer of the company (in this section referred to as "the principal engineer") plans sections and specifications of so much of the works as will be situate within one hundred yards of any railway or other property of the company for his approval which shall not be unreasonably withheld and shall be deemed to have been given if the principal engineer shall not within twenty-eight days of the receipt by him of such plans sections and specifications signify his disapproval thereof and his requirements in relation thereto:
- (4) The works shall be carried out only in accordance with plans sections and specifications approved or

deemed to be approved as aforesaid or in case of difference determined by arbitration in accordance with this section:

- (5) The works shall be carried out under the superintendence if given and to the reasonable satisfaction of the principal engineer and so as not to cause any injury to the railways and works of the company or interference with the traffic thereon and if contrary to this enactment any such injury or interference shall arise from or be in any way owing to any of the works or any lowering subsequent to the commencement of the works of the existing bed of the river Weaver where it now passes under the railway of the company the Trustees shall pay to the company full compensation in respect of any such injury or interference:
- (6) The Trustees shall bear and on demand repay to the company any expense reasonably incurred by them in carrying out constructing and maintaining any temporary or permanent works which may in the opinion of the principal engineer be necessary for securing the safety of the railways and works of the company or for avoiding any such injury or interference as is referred to in the last preceding paragraph of this section:
- (7) If as a result of the construction of any of the works any of the piers of the Vale Royal viaduct which carries the railway of the company over the navigation in the parish of Hartford shall become an island pier situate between respective portions of the navigation the Trustees shall provide and maintain protective dolphins to the reasonable satisfaction of the principal engineer for the purpose of avoiding so far as may be the danger of injury through collision both to the property of the company and to vessels using the navigation:
- (8) The Trustees shall afford to the company all reasonable facilities including where necessary the grant of easements for any widening alteration or extension of the Vale Royal and Dutton viaducts or either of them which the company may desire to carry out under powers existing at the passing of this Act and any additional expense which the company may reasonably incur in so doing by reason of the existence of the works shall be repaid by the Trustees to the company:
- (9) If at any time after the grant of an easement under this section relating to the bridge over the Trent and Mersey Canal of the company numbered 18 on the

deposited plans the said bridge shall cease to be subject to any rights of user otherwise than by virtue of such easement the Trustees shall thereafter be responsible for and from time to time repay to the company all expenses incurred by them in the maintenance or repair of the said bridge until such time as the said bridge shall become repairable by the inhabitants at large:

- (10) Any dispute or difference which may arise between the Trustees and the company under this section shall be referred to and determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

24. For the protection of the North Wales Power Company Limited (in this section referred to as "the company") the following provision shall unless otherwise agreed in writing between the Trustees and the company apply and have effect (that is to say):—

For protection
of North Wales
Power
Company
Limited.

- (1) Notwithstanding anything shown on the deposited plans and contained in the deposited book of reference the Trustees shall not in pursuance of section 4 (Power to acquire lands) of this Act enter upon take or use the lands forming any part of the enclosures numbered on the deposited plans 50 and 51 in the parish of Davenham situate within a distance of thirty feet measured horizontally of line No. 94:

- (2) In this section line No. 94 means the double circuit 33,000-volt line of the company known as No. 94 between the company's substation in Middlewich Road Crewe and the generating station of the Mersey Power Company Limited at Weston Point near Runcorn and includes all or any electric lines (as defined in the Electric Lighting Act 1882 and whether under upon or above the level of the ground) posts poles works and apparatus comprised therein or used in connection therewith.

45 & 46 Vict.
c. 56.

25. For the protection of Imperial Chemical Industries Limited and any of their subsidiary or associated companies (all of which companies are hereinafter referred to as "the company") the following provision shall unless otherwise agreed in writing between the Trustees and the company apply and have effect (that is to say):—

For protection
of Imperial
Chemical
Industries
Limited and
others.

Notwithstanding anything shown on the deposited plans and described in the deposited book of reference

the Trustees shall not in pursuance of this Act enter upon take or use the lands comprising the enclosures in the parish of Little Leigh in the rural district of Northwich numbered on the deposited plans 32 and 33 nor the lands forming any part of the enclosures in that parish numbered on the deposited plans 35 36 38 and 39 within a distance of ten feet of any water pipes belonging to the company.

Saving for
town and
country
planning.

22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.

26. For the purposes so far as applicable of the provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or any enactment repealed by those Acts and for the time being in force this Act shall be deemed to have become law before the commencement of the said Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944.

Crown rights.

27. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Repeal.

28. The following enactments are hereby repealed:—

The Act 33 Geo. II chapter 49 (1759).

Section XXXVI (Boats sunk to be weighed up);

The proviso to section XLVII (Powers of the former Act (not hereby altered) to take effect as if re-enacted).

The Act 47 Geo. III chapter 82 (1807).

Section III (Breadth of the canal and towing paths);

Section LXIV (Vessels sunk to be weighed up);

Section LXVI (All locks to be the width of 18 feet, and the water way in the canal of the depth of six feet).

Costs of Act.

29. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trustees out of any moneys for the time being in their hands.

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 6d. net

(H. 2274)